

rules reflect an implicit judgment that for-profit assemblies are important and religious gatherings are less so; that moneymaking is more important than faith during the pandemic. But that rationale “devalues religious reasons” for congregating “by judging them to be of lesser import than nonreligious reasons,” in violation of the Constitution. *Lukumi*, 508 U.S., at 537–538. The Constitution does not tolerate discrimination against religion merely because religious services do not yield a profit.

More broadly, the State insists that it is in the midst of an emergency and that it should receive deference from the courts and not be bogged down in litigation. If the courts simply enforce the constitutional prohibition against religious discrimination, however, the floodgates will not open. I agree that courts should be very deferential to the States’ line-drawing in opening businesses and allowing certain activities during the pandemic. For example, courts should be extremely deferential to the States when considering a substantive due process claim by a secular business that it is being treated worse than another business. Cf. *Jacobson v. Massachusetts*, 197 U.S. 11, 25–28 (1905). Under the Constitution, state and local governments, not the federal courts, have the primary responsibility for addressing COVID-19 matters such as quarantine requirements, testing plans, mask mandates, phased reopenings, school closures, sports rules, adjustment of voting and election procedures, state court and correctional institution practices, and the like.

But COVID-19 is not a blank check for a State to discriminate against religious people, religious organizations, and religious services. There are certain constitutional red lines that a State may not cross even in a crisis. Those red lines include racial discrimination, religious discrimination, and content-based suppression of speech. This Court’s history is littered with unfortunate examples of overly broad judicial deference to the government when the government has invoked emergency powers and asserted crisis circumstances to override equal-treatment and free-speech principles. The court of history has rejected those jurisprudential mistakes and cautions us against an unduly deferential judicial approach, especially when questions of racial discrimination, religious discrimination, or free speech are at stake.

Finally, the State relies on the Court’s recent temporary injunction decision in *South Bay United Pentecostal Church v. Newsom*, 590 U.S. 965 (2020). There, the Court considered a California

limitation on crowd size at religious services. California treated religious organizations better than some secular organizations, like movie theaters, but worse than other secular organizations, such as restaurants, supermarkets, retail stores, pharmacies, hair salons, offices, factories, and the like. In my view, the State of California's explanation, at least on that record, did not persuasively distinguish religious services from several of the favored secular organizations, particularly restaurants and supermarkets. But the Court ultimately denied the church's request for an emergency injunction. In his concurrence, THE CHIEF JUSTICE appropriately emphasized both the high standard for obtaining injunctive relief in this Court and the ongoing and rapidly changing public health emergency. THE CHIEF JUSTICE also noted that the favored secular activities did not involve people who "congregate in large groups" or "remain in close proximity for extended periods." *Id.*, at 966 (opinion concurring in denial of application for injunctive relief).

I continue to think that the restaurants and supermarkets at issue in *South Bay* (and especially the restaurants) pose similar health risks to socially distanced religious services in terms of proximity to others and duration of visit. I suspect that many who have frequented all three kinds of establishments in recent weeks and months would agree. So I continue to respectfully disagree with *South Bay*.

But accepting *South Bay* as a precedent, this case is much different because it involves bars, casinos, and gyms. Nevada's COVID-19-based health distinction between (i) bars, casinos, and gyms on the one hand, and (ii) religious services on the other hand, defies common sense. As I see it, the State cannot plausibly maintain that those large secular businesses are categorically safer than religious services, or that only religious services—and not bars, casinos, and gyms—entail people congregating in large groups or remaining in close proximity for extended periods of time. In any event, the State has not yet supplied a sufficient justification for its counterintuitive distinction.

* * *

The Constitution "protects religious observers against unequal treatment." *Trinity Lutheran*, 582 U.S., at 458 (internal quotation marks and alterations omitted). Nevada's 50-person attendance cap on religious worship services puts praying

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at churches, synagogues, temples, and mosques on worse footing than eating at restaurants, drinking at bars, gambling at casinos, or biking at gyms. In other words, Nevada is discriminating against religion. And because the State has not offered a sufficient justification for doing so, that discrimination violates the First Amendment. I would grant the Church's application for a temporary injunction. I respectfully dissent.

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Miscellaneous Order

No. 20A18. LITTLE, GOVERNOR OF IDAHO, ET AL. *v.* RECLAIM IDAHO ET AL. D. C. Idaho. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted. The District Court's June 23, June 26, and June 30, 2020, orders are stayed pending disposition of the appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

CHIEF JUSTICE ROBERTS, with whom JUSTICE ALITO, JUSTICE GORSUCH, and JUSTICE KAVANAUGH join, concurring.

The District Court in this case ordered Idaho either to certify an initiative for inclusion on the ballot without the requisite number of signatures, or to allow the initiative sponsor additional time to gather digital signatures through an online process of solicitation and submission never before used by the State. When the State chose neither option, the District Court authorized the sponsor to join with a third-party vendor to develop and implement a new online system over the course of nine days. The Ninth Circuit subsequently denied the State's request for a stay pending appeal, and Idaho now seeks the same relief from this Court.

Under the well-settled standard for this form of relief, the State must show (1) a "reasonable probability" that this Court will grant certiorari, (2) a "fair prospect" that the Court will reverse

the judgment below, and (3) a “likelihood that irreparable harm will result from the denial of a stay.” *Hollingsworth v. Perry*, 558 U.S. 183, 190 (2010) (*per curiam*). In my view, the State has satisfied each requirement for a stay.

First, the Court is reasonably likely to grant certiorari to resolve the split presented by this case on an important issue of election administration. States retain “considerable leeway to protect the integrity and reliability of the initiative process.” *Buckley v. American Constitutional Law Foundation, Inc.*, 525 U.S. 182, 191 (1999). In exercising this discretionary authority, the States depend on clear and administrable guidelines from the courts. Yet the Circuits diverge in fundamental respects when presented with challenges to the sort of state laws at issue here. According to the Sixth and Ninth Circuits, the First Amendment requires scrutiny of the interests of the State whenever a neutral, procedural regulation inhibits a person’s ability to place an initiative on the ballot. See *Thompson v. DeWine*, 959 F.3d 804, 808 (CA6 2020) (*per curiam*); *Angle v. Miller*, 673 F.3d 1122, 1133 (CA9 2012). Other Circuits, by contrast, have held that regulations that may make the initiative process more challenging do not implicate the First Amendment so long as the State does not restrict political discussion or petition circulation. See, e.g., *Jones v. Markiewicz-Qualkinbush*, 892 F.3d 935, 938 (CA7 2018); *Initiative and Referendum Institute v. Walker*, 450 F.3d 1082, 1099–1100 (CA10 2006) (en banc); *Dobrovolsky v. Moore*, 126 F.3d 1111, 1113 (CA8 1997). Since the onset of the pandemic, the Circuits have applied their conflicting frameworks to reach predictably contrary conclusions as to whether and to what extent States must adapt the initiative process to account for new obstacles to collecting signatures. Compare, e.g., *Miller v. Thurston*, 967 F.3d 727, 741 (CA8 2020), and *Morgan v. White*, 964 F.3d 649, 652 (CA7 2020) (*per curiam*), with, e.g., *SawariMedia, LLC v. Whitmer*, 963 F.3d 595, 597 (CA6 2020).

Second, there is a fair prospect that the Court will set aside the District Court order. *INS v. Legalization Assistance Project of Los Angeles County Federation of Labor*, 510 U.S. 1301, 1304 (1993) (O’Connor, J., in chambers). This is not a case about the right to vote, but about how items are placed on the ballot in the first place. Nothing in the Constitution requires Idaho or any

other State to provide for ballot initiatives. See *Meyer v. Grant*, 486 U. S. 414, 424 (1988). And the claims at issue here challenge the application of only the most typical sort of neutral regulations on ballot access. Even assuming that the state laws at issue implicate the First Amendment, such reasonable, nondiscretionary restrictions are almost certainly justified by the important regulatory interests in combating fraud and ensuring that ballots are not cluttered with initiatives that have not demonstrated sufficient grassroots support. See *Buckley*, 525 U. S., at 204–205. The State’s established verification procedure is no empty formality. In Idaho’s largest county, clerks reject about 30 to 40 percent of signatures at this stage.

Third, the State is likely to suffer irreparable harm absent a stay. Right now, the preliminary injunction disables Idaho from vindicating its sovereign interest in the enforcement of initiative requirements that are likely consistent with the First Amendment. See *Abbott v. Perez*, 585 U. S. 579, 602, and n. 17 (2018). The dissent does not regard the burden on the State as significant, but in my view that judgment fails to appreciate that the initiative process is just one aspect of a primary and general election system facing a wide variety of challenges in the face of the pandemic. The Governor and Secretary of State here, for example, have suspended some limits on absentee voting and processed requests for absentee ballots through online channels. In addition to preparing for elections with a record number of absentee ballot requests, the county clerks must now also learn, under extraordinary time pressures, how to verify digital signatures through an entirely new system mandated by the District Court. The District Court did not accord sufficient weight to the State’s discretionary judgments about how to prioritize limited state resources across the election system as a whole.

The pending appeal in the Ninth Circuit does not eliminate the present strain imposed by this structural injunction on the time and resources of state and local officials, and the costs to the State will continue to add up over the coming weeks. Nor does the balance of equities counsel in favor of denying relief at this point. See *Hollingsworth*, 558 U. S., at 190. While a stay may preclude this particular initiative from appearing on the ballot this November, that consequence is attributable at least in part to Reclaim Idaho, which “delayed unnecessarily” its pursuit of relief until more than a month after the deadline for submitting

signatures. *Fishman v. Schaffer*, 429 U.S. 1325, 1330 (1976) (Marshall, J., in chambers); see also *Benisek v. Lamone*, 585 U.S. 155, 159, 160 (2018) (*per curiam*). Finally, the dissent is wrong to criticize this Court for supposedly offering the “first view” on this matter. The District Court and the Court of Appeals have already acted on the State’s request for a stay, which is now before us.

“A preliminary injunction is an extraordinary remedy.” *Winter v. Natural Resources Defense Council, Inc.*, 555 U.S. 7, 24 (2008). And the injunction here is all the more extraordinary given the extent to which the District Court recast the initiative process. See *Lewis v. Casey*, 518 U.S. 343, 349 (1996). No one has overlooked that the State bears an “especially heavy burden” in justifying a stay pending its appeal to the Ninth Circuit. *Packwood v. Senate Select Comm. on Ethics*, 510 U.S. 1319, 1320 (1994) (Rehnquist, C. J., in chambers). But in my view that burden has been met, especially in light of the transformative and intrusive nature of this preliminary injunction.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

Yet again, this Court intervenes to grant a stay pending appeal, in this case less than two weeks before the Court of Appeals for the Ninth Circuit is poised to hear an expedited appeal on a preliminary injunction entered by the District Court.¹ That injunction requires the State of Idaho to accommodate delays and risks introduced by the COVID-19 pandemic by extending the deadline for accepting ballot-initiative signatures and permitting digital collection of signatures. The State claims that it requires immediate intervention from this Court because, absent a stay, it must expend time and resources verifying digital signatures in advance of the extended signature-submission deadline.

¹ Although an applicant seeking a stay pending appeal “has an especially heavy burden,” *Packwood v. Senate Select Comm. on Ethics*, 510 U.S. 1319, 1320 (1994) (Rehnquist, C. J., in chambers), this Court has begun to grant such stays with notable frequency. See, e.g., *Department of Homeland Security v. New York*, 589 U.S. 1173 (2020); *Republican National Committee v. Democratic National Committee*, 589 U.S. 423 (2020) (*per curiam*); *Barr v. Lee*, 591 U.S. 979 (2020) (*per curiam*); *Barr v. Purkey*, 591 U.S. 1034 (2020); *Merrill v. People First of Alabama*, 591 U.S. 1024 (2020); *Wolf v. Cook County*, 589 U.S. 1190 (2020); *Henry Schein, Inc. v. Archer & White Sales, Inc.*, 589 U.S. 1170 (2020). It is beginning to look like such an applicant has nearly no burden at all.

But the equities do not favor the State, at least not yet. The Ninth Circuit will hear Idaho's case on August 11, almost a month before Idaho's Secretary of State must certify ballot questions to county clerks (on September 7), and almost three months before election day. If the District Court's preliminary injunction turns out to have been improper, Idaho will still have time to omit respondents' initiative from the November ballot. Respondents, on the other hand, are in a far more precarious position. Cf. *Barnes v. E-Systems, Inc. Group Hospital Medical & Surgical Ins. Plan*, 501 U. S. 1301, 1304–1305 (1991) (Scalia, J., in chambers) (even where an injunction bars enforcement of a State's laws, "sound equitable discretion" requires balancing harms to stay applicant against harms to respondent). The stay granted today puts a halt to their signature-collection efforts, meaning that even if respondents ultimately prevail on appeal, it will be extremely difficult, if not impossible, for them to collect enough qualifying signatures by any reasonable deadline for the November ballot.² In other words, the delay occasioned by this Court's stay likely dooms to mootness respondents' First Amendment claims before any appellate court has had the chance to consider their merits (and, indeed, before this Court has had the chance to consider any potential petition for certiorari).

To be sure, as the concurrence points out, the District Court's preliminary injunction burdens Idaho's county clerks with the task of verifying digital signatures during an already busy election year. But Idaho's undeniable interest in vacatur of the preliminary injunction should be considered in the first instance by the Ninth Circuit, which must weigh the State's temporary expenditure of resources against the significant First Amendment questions raised by respondents. It is premature to assume, based only on that court's (necessarily quick) resolution of Idaho's emergency motion for a stay, that the Ninth Circuit will strike that balance incorrectly upon consideration of the parties' full briefing and oral argument.

² As the concurrence notes, the fact that respondents are short on time is attributable, at least in part, to their delay in filing suit. But given the difficulties of securing legal counsel during a pandemic, I cannot agree with THE CHIEF JUSTICE's conclusion that their delay was "unnecessar[y]." *Ante*, at 1062–1063 (quoting *Fishman v. Schaffer*, 429 U. S. 1325, 1330 (1976) (Marshall, J., in chambers) (concluding that applicants seeking to challenge a years' old statute had "delayed unnecessarily in commencing . . . suit"))).

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Nonetheless, based on only the chance that Idaho will not prevail on appeal, that Idaho will seek certiorari in this Court, and that this Court will grant that petition and reverse the (hypothetical) judgment below, this Court takes the extraordinary step of staying the District Court's preliminary injunction pending appeal. In doing so, the Court dispenses liberally a "rare and exceptional" remedy, one that this Court traditionally has granted "only 'upon the weightiest considerations,'" merely to address alleged harms that would exist in the mine-run of similar cases. *Fargo Women's Health Organization v. Schafer*, 507 U.S. 1013, 1014 (1993) (O'Connor, J., concurring in denial of application) (quoting *O'Rourke v. Levine*, 80 S. Ct. 623, 624, 4 L. Ed. 2d 615, 616 (1960) (Harlan, J., in chambers)). And it deprives itself of the benefit of the appellate court's full consideration and review of the important constitutional issues at the heart of this case. See *Wolf v. Cook County*, 589 U.S. 1190, 1195 (2020) (SOTOMAYOR, J., dissenting from grant of stay). Especially given that the Ninth Circuit has signaled its intent to act expeditiously, there is no cause for this Court to usurp the Court of Appeals' responsibility "to review the District Court's decision . . . in the first instance." *McLane Co. v. EEOC*, 581 U.S. 72, 85 (2017).

Today, by jumping ahead of the Court of Appeals, this Court once again forgets that it is "'a court of review, not of first view,'" *ibid.*, and undermines the public's expectation that its highest court will act only after considered deliberation. I respectfully dissent from the grant of stay.

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Miscellaneous Orders

No. 19A60. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* SIERRA CLUB ET AL. D. C. N. D. Cal. Motion to lift stay denied.

JUSTICE BREYER, with whom JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join, dissenting.

Just over a year ago, I suggested "a straightforward way" to avoid irreparable harm to the parties in this litigation: stay the District Court's injunction "only to the extent" that it "prevents the Government from finalizing [relevant] contracts or taking other preparatory administrative action, but leave [the injunction]

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in place insofar as it precludes the Government from disbursing those funds or beginning construction.” *Trump v. Sierra Club*, 588 U. S. 930, 932 (2019) (opinion concurring in part and dissenting in part from grant of stay).

Now, the Government has apparently finalized its contracts, avoiding the irreparable harm it claimed in first seeking a stay. The Court’s decision to let construction continue nevertheless, I fear, may “operat[e], in effect, as a final judgment.” *Ibid.* I would therefore lift the Court’s stay of the District Court’s injunction.

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Miscellaneous Order

No. 19A1058. LOPEZ BELLO ET AL. *v.* STANSELL ET AL. D. C. S. D. Fla. Application for stay, addressed to JUSTICE SOTOMAYOR, and by her referred to the Court, denied.

Rehearing Denied

- No. 19–682. KELSAY *v.* ERNST, 590 U. S. 942;
No. 19–737. DOUSE *v.* UNITED STATES ET AL., 590 U. S. 970;
No. 19–1021. JESSOP ET AL. *v.* CITY OF FRESNO, CALIFORNIA, ET AL., 590 U. S. 955;
No. 19–1095. BEGGS ET UX. *v.* STORY ET AL., 590 U. S. 943;
No. 19–1122. HONG TANG *v.* UNIVERSITY OF BALTIMORE ET AL., 590 U. S. 943;
No. 19–1128. MENDES DA COSTA *v.* PEREIRA ET AL., 590 U. S. 944;
No. 19–1164. JOHNSON *v.* WORKERS’ COMPENSATION APPEALS BOARD ET AL., 590 U. S. 959;
No. 19–1238. WATSON *v.* MCCARTHY, SECRETARY OF THE ARMY, 590 U. S. 960;
No. 19–1243. ARMSTRONG *v.* WILSON COUNTY, NORTH CAROLINA, ET AL., 591 U. S. 1004;
No. 19–1245. KWUSHUE *v.* UNITED STATES, 590 U. S. 960;
No. 19–5921. MONTGOMERY *v.* UNITED STATES, 590 U. S. 965;
No. 19–7050. IN RE ROSA, 589 U. S. 1201;
No. 19–7127. TOMLIN *v.* PATTERSON, WARDEN, 590 U. S. 971;
No. 19–7401. HOCKADAY *v.* CHRISTNER ET AL., 589 U. S. 1296;
No. 19–7612. SIMS *v.* WELLS FARGO BANK, N. A., ET AL., 590 U. S. 908;
No. 19–7641. YUSONG GONG *v.* UNIVERSITY OF MICHIGAN ET AL., 590 U. S. 908;

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No. 19–7690. *SHORT v. SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GREENSBURG, ET AL.*, 589 U. S. 1299;
No. 19–7691. *IN RE STARKS*, 590 U. S. 903;
No. 19–7717. *WILSON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*, 590 U. S. 909;
No. 19–7721. *PARSONS v. MCDANIEL ET AL.*, 590 U. S. 924;
No. 19–7725. *CONRAD v. UNITED STATES*, 590 U. S. 909;
No. 19–7728. *ENGLISH v. ENERGY FUTURE HOLDINGS CORP. ET AL.*, 590 U. S. 909;
No. 19–7737. *WOLFE v. UNITED STATES*, 589 U. S. 1288;
No. 19–7858. *BALLARD v. CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL.*, 590 U. S. 911;
No. 19–7888. *BANKS v. WAFFLE HOUSE, INC.*, 590 U. S. 946;
No. 19–7897. *WEBSTER v. CORVEL ENTERPRISE CO., INC., ET AL.*, 590 U. S. 932;
No. 19–7906. *OSBORNE v. GEORGIADES*, 590 U. S. 946;
No. 19–7925. *O’ROURKE v. LASHBROOK, WARDEN*, 590 U. S. 946;
No. 19–7936. *ZAVAGLIA v. BOSTON UNIVERSITY SCHOOL OF MEDICINE*, 590 U. S. 947;
No. 19–7937. *YANEY ET AL. v. MASON ET AL.*, 590 U. S. 947;
No. 19–8001. *VINAROV v. CITIMORTGAGE, INC.*, 590 U. S. 948;
No. 19–8012. *DREVALEVA v. ALAMEDA HEALTH SYSTEM ET AL.*, 590 U. S. 948;
No. 19–8167. *TALBERT v. CARNEY ET AL.*, 590 U. S. 973;
No. 19–8171. *DAWSON v. BANK OF NEW YORK MELLON ET AL.*, 590 U. S. 950;
No. 19–8172. *CARSON v. UNITED STATES*, 590 U. S. 934;
No. 19–8180. *M. H. v. INDIANA DEPARTMENT OF CHILD SERVICES*, 590 U. S. 973;
No. 19–8248. *WILMORE v. UNITED STATES*, 590 U. S. 963;
No. 19–8284. *IN RE YOUNG*, 590 U. S. 958;
No. 19–8311. *DALEN v. FEDERAL NATIONAL MORTGAGE ASSOCIATION ET AL.*, 590 U. S. 982; and
No. 19–8316. *TROY-MCKOY v. NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION*, 590 U. S. 963. Petitions for rehearing denied.

No. 19–8156. *STANCU v. HYATT CORP.*, 590 U. S. 976. Petition for rehearing denied. JUSTICE BREYER took no part in the consideration or decision of this petition.

AUGUST 5, 2020

Miscellaneous Order

No. 20A19. BARNES, SHERIFF, ORANGE COUNTY, CALIFORNIA, ET AL. *v.* AHLMAN ET AL. D. C. C. D. Cal. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted, and the District Court's May 26, 2020, order granting preliminary injunction is stayed pending disposition of the appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE BREYER and JUSTICE KAGAN would deny the application.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

Today, this Court steps in to stay a preliminary injunction requiring Sheriff Don Barnes and Orange County (collectively, the Orange County Jail, or Jail) to implement certain safety measures to protect their inmates during the unprecedented COVID-19 pandemic. The injunction's requirements are not remarkable. In fact, the Jail initially claimed that it had already implemented each and every one of them. Yet, apparently disregarding the District Court's detailed factual findings, its application of established law, and the fact that the Court of Appeals for the Ninth Circuit has twice denied a stay pending its review of the District Court's order, this Court again intervenes to grant a stay before the Circuit below has heard and decided the case on the merits. See *Little v. Reclaim Idaho*, 591 U.S. 1060, and n. 1 (2020) (SOTOMAYOR, J., dissenting from grant of stay) (noting the frequency with which the Court has begun granting such stays). The Jail's application does not warrant such extraordinary intervention. Indeed, this Court stays the District Court's preliminary injunction even though the Jail recently reported 15 new cases of COVID-19 in a single week (even with the injunction in place), even though the Jail misrepresented under oath to the District Court the measures it was taking to combat the virus' spread, and even though the Jail's central rationale for a stay (that the injunction goes beyond

federal guidelines) ignores the lower courts' conclusion that the Jail's measures fell "well short" of the Centers for Disease Control and Prevention (CDC Guidelines). 2020 WL 3547960, *4 (CA9, June 17, 2020).

I

The Orange County Jail currently houses a population of over 3,000 pretrial detainees and inmates. At the time of the District Court's injunction, the Jail had witnessed an increase of more than 300 confirmed COVID-19 cases in a little over a month. The Jail, moreover, was well aware of the risk that the virus could spread rapidly through its congregate population and that addressing that risk would require certain precautionary measures. The District Court found that several organizations, including a group of Orange County Sheriff deputies, had "repeatedly warned . . . of the dangers from COVID-19 in the Jail." 445 F. Supp. 3d 671, 691 (CD Cal. 2020). Indeed, the Jail claims that it sprang into action as soon as the Jail's first documented case of COVID-19 appeared in March of 2020, collaborating closely with local health officials on preventative measures to contain the virus' spread. When respondents brought suit, seeking an injunction that would require the Jail to implement a number of safety measures to protect inmates against the virus, the Jail told the District Court that such relief was not needed because it had, "at a minimum, already implemented all of the mitigation efforts" requested. Decl. of Joseph Balicki in No. 8:20-cv-00835, Doc. 44-10, ¶2 (CD Cal., May 12, 2020) (Balicki Decl.); see also *id.*, ¶9 ("There is not a single 'mitigation effort' outlined in Plaintiffs' Complaint that has not already been implemented in the jails"). The Jail claimed that it had already achieved proper social distancing, provided inmates enough soap for frequent handwashing, and isolated and tested all symptomatic individuals.

Dozens of inmate declarations told a different story. Although the Jail had been warned that "social distancing is the cornerstone of reducing transmission of COVID-19," Exh. B to Balicki Decl., Doc. 44-12, inmates described being transported back and forth to the jail in crammed buses, socializing in dayrooms with no space to distance physically, lining up next to each other to wait for the phone, sleeping in bunk beds two to three feet apart, and even being ordered to stand closer than six feet apart when inmates tried to socially distance. Moreover, although the Jail told

its inmates that they could “best protect” themselves by washing their hands with “soap and water throughout the day,” Exh. C to Balicki Decl., Doc. 44–13, numerous inmates reported receiving just one small, hotel-sized bar of soap per week. And after symptomatic inmates were removed from their units, other inmates were ordered to dispose of their belongings without gloves or other protective equipment. Finally, despite the Jail’s stated policy to test and isolate individuals who reported or exhibited symptoms consistent with COVID–19, multiple symptomatic detainees described being denied tests, and others recounted sharing common spaces with infected or symptomatic inmates.

II

Based on detailed factual findings, which the Ninth Circuit credited, the District Court concluded that the risk of harm in the Jail was “undeniably high.” 445 F. Supp. 3d, at 668. The court further determined that while the Jail may have formally adopted a policy to mitigate that risk, its actual compliance was “piecemeal and inadequate.” *Ibid.* On this evidence, the District Court held that respondents were likely to succeed in showing that the Jail was deliberately indifferent to the health and safety of its inmates and that it had violated federal disability rights law. In response, the court imposed a preliminary injunction that closely followed the CDC Guidelines for correctional and detention facilities.

This Court now stays that injunction, even though this case presents none of the typical indicia warranting certiorari. See *Maryland v. King*, 567 U. S. 1301, 1302 (2012) (ROBERTS, C. J., in chambers) (an applicant for a stay “must demonstrate (1) ‘a reasonable probability’ that this Court will grant certiorari, (2) ‘a fair prospect’ that the Court will then reverse the decision below, and (3) ‘a likelihood that irreparable harm [will] result from the denial of a stay’” (quoting *Conkright v. Frommert*, 556 U. S. 1401, 1402 (2009) (GINSBURG, J., in chambers))). The District Court and Ninth Circuit applied well-established law to the particular facts of this case to conclude that the Jail knew of and disregarded an “excessive risk to inmate health or safety.” *Farmer v. Brennan*, 511 U. S. 825, 837 (1994). That conclusion is not clearly wrong. The Jail argues that, because it voluntarily released 53 percent of its population, it necessarily could not have been deliberately indifferent to the needs of its inmates. But the release

of even a large number of inmates does not absolve the Jail of its responsibility for the health and safety of the roughly 3,000 individuals left behind. And while the Jail claims that it largely implemented the CDC Guidelines and radically increased hygiene and cleaning within its walls, the District Court, whose factual findings are owed deference, found the reality to be very different.¹ The District Court concluded that by demonstrating the Jail's failure to implement basic safety measures of which it was well aware, respondents had established a likelihood of success on their claim that the Jail had been deliberately indifferent to the serious risk COVID-19 posed to the health of its inmates.

Even if this Court disagrees with the District Court's conclusion, "error correction . . . is outside the mainstream of the Court's functions and . . . not among the 'compelling reasons' . . . that govern the grant of certiorari." S. Shapiro, K. Geller, T. Bishop, E. Hartnett, & D. Himmelfarb, *Supreme Court Practice* §5.12(c)(3), p. 5-45 (11th ed. 2019); see also *Farmer*, 511 U.S., at 842 (noting that deliberate indifference is a "question of fact subject to demonstration in the usual ways, including inference from circumstantial evidence"). That is especially true where, as here, the Jail fails to contest an entirely independent and sufficient ground for the District Court's injunction: respondents' claims under federal disability rights law.

The Jail nonetheless argues that the Ninth Circuit created a certworthy circuit split because, in the Jail's view, it endorsed a preliminary injunction that went beyond the CDC Guidelines. But no circuit split exists. Like other Circuits, the Ninth Circuit considered the Jail's request for a stay by applying established law to the facts and equities before it. Its decision turned on the conclusion that, in practice, the Jail's measures fell "well short" of the CDC Guidelines, not on whether the District Court's injunction exceeded them. Indeed, in a case presenting different facts and equities, the Ninth Circuit recently stayed an injunction to the extent it exceeded the CDC Guidelines. See *Roman v. Wolf*, 2020 WL 2188048, *1 (CA9, May 5, 2020). Moreover, the Jail's claim that "most of" the injunction's requirements exceed the CDC Guidelines is greatly exaggerated. Application for Stay 10. The Jail points to just two alleged discrepancies: first, that the

¹ Notably, the Jail has since resisted respondents' attempts to verify the Jail's compliance with the District Court's preliminary injunction.

District Court ordered the Jail to provide adequate spacing of six feet or more between incarcerated people, whereas the CDC Guidelines suggest only that six feet of space is “‘idea[.]’”; and second, that the injunction requires daily temperature checks and screening questions. *Id.*, at 10–11. As to the former, the CDC Guidelines acknowledge that social distancing can be difficult in a correctional facility, but the Jail has not argued that its physical layout does not permit it.² And as to the latter, as the Jail itself admits, the Guidelines provide for daily temperature checks in housing units where COVID–19 has been identified. Indeed, updated CDC Guidelines now recommend daily symptom and temperature screening in any correctional facility with a reported case.

The Jail also faces an uphill battle in its claim of irreparable harm. The measures it now decries as vexatious judicial micro-management are the same measures that just months ago it claimed were, “at a minimum,” already being implemented. If the Jail is already doing everything required by the injunction, then what irreparable harm does the injunction pose? And if it is not, and the Jail misrepresented its actions under oath to the District Court, then why should the Jail benefit from this Court’s equitable discretion? See *Trump v. International Refugee Assistance Project*, 582 U. S. 571, 580 (2017) (*per curiam*) (“In assessing the lower courts’ exercise of equitable discretion, we bring to bear an equitable judgment of our own”). This Court normally does not reward bad behavior, and certainly not with extraordinary equitable relief.³ And while “[c]ourts must be sensitive to

² Moreover, the injunction directs the Jail to “provide adequate spacing of six feet or more between incarcerated people so that social distancing can be accomplished in accordance with CDC guidelines,” 445 F. Supp. 3d 671, 694 (CD Cal. 2020), and therefore arguably requires the Jail to implement social distancing only to the extent required by the Guidelines.

³ Given the nature of the “rare and exceptional” relief the Jail seeks, *Fargo Women’s Health Organization v. Schafer*, 507 U. S. 1013, 1014 (1993) (O’Connor, J., concurring in denial of application), this Court has an independent obligation to weigh the equities. The Jail’s misrepresentations to the District Court are one factor to consider. Another is that on the very same day it asked this Court to intervene in its pending appellate proceedings, the Jail requested from the Ninth Circuit a 1-month extension to file its opening brief. One might wonder, then, whether the Jail’s need for relief is quite as urgent as the Jail makes out.

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the . . . need for deference to experienced and expert prison administrators,” they “may not allow constitutional violations to continue simply because a remedy would involve intrusion into the realm of prison administration.” *Brown v. Plata*, 563 U.S. 493, 511 (2011).

* * *

At the time of the injunction, there were nearly 3,000 inmates still in the Jail’s care, 488 of whom were medically vulnerable to COVID-19. “[H]aving stripped them of virtually every means of self-protection and foreclosed their access to outside aid, the government and its officials” must “‘take reasonable measures to guarantee the[ir] safety.’” *Farmer*, 511 U.S., at 832–833; see also *Valentine v. Collier*, 590 U.S. 935, 940 (2020) (statement of SOTOMAYOR, J.) (“It has long been said that a society’s worth can be judged by taking stock of its prisons. That is all the truer in this pandemic, where inmates everywhere have been rendered vulnerable and often powerless to protect themselves from harm”). The District Court found that, despite knowing the severe threat posed by COVID-19 and contrary to its own apparent policies, the Jail exposed its inmates to significant risks from a highly contagious and potentially deadly disease. Yet this Court now intervenes, leaving to its own devices a jail that has misrepresented its actions to the District Court and failed to safeguard the health of the inmates in its care. I respectfully dissent.

AUGUST 11, 2020

Miscellaneous Order

No. 20A21. CLARNO, OREGON SECRETARY OF STATE *v.* PEOPLE NOT POLITICIANS OREGON ET AL. D. C. Ore. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted. The District Court’s July 10 and July 13, 2020, orders granting preliminary injunction are stayed pending disposition of the appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE GINSBURG and JUSTICE SOTOMAYOR would deny the application.

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Miscellaneous Order

No. 20A28. REPUBLICAN NATIONAL COMMITTEE ET AL. *v.* COMMON CAUSE RHODE ISLAND ET AL. D. C. R. I. Application for stay, presented to JUSTICE BREYER, and by him referred to the Court, denied. Unlike *Merrill v. People First of Alabama*, 591 U. S. 1024 (2020), and other similar cases where a State defends its own law, here the state election officials support the challenged decree, and no state official has expressed opposition. Under these circumstances, the applicants lack a cognizable interest in the State's ability to "enforce its duly enacted" laws. *Abbott v. Perez*, 585 U. S. 579 (2018). The status quo is one in which the challenged requirement has not been in effect, given the rules used in Rhode Island's last election, and many Rhode Island voters may well hold that belief. JUSTICE THOMAS, JUSTICE ALITO, and JUSTICE GORSUCH would grant the application.

AUGUST 17, 2020

Miscellaneous Order

No. 19–422. COLLINS ET AL. *v.* MNUCHIN, SECRETARY OF THE TREASURY, ET AL.; and

No. 19–563. MNUCHIN, SECRETARY OF THE TREASURY, ET AL. *v.* COLLINS ET AL. C. A. 5th Cir. [Certiorari granted, 591 U. S. 1028.] Aaron Nielson, Esq., of Provo, Utah, is invited to brief and argue as *amicus curiae* in support of the position that the structure of the Federal Housing Finance Agency does not violate the separation of powers.

AUGUST 18, 2020

Miscellaneous Order

No. 19–422. COLLINS ET AL. *v.* MNUCHIN, SECRETARY OF THE TREASURY, ET AL.; and

No. 19–563. MNUCHIN, SECRETARY OF THE TREASURY, ET AL. *v.* COLLINS ET AL. C. A. 5th Cir. [Certiorari granted, 591 U. S. 1028.] Mnuchin et al. shall file an opening brief on the questions presented by the petition in No. 19–563, limited to 13,000 words, by Monday, August 17, 2020. Collins et al. shall file a consolidated response in No. 19–563 and opening brief in No. 19–422, limited to 20,000 words, by Wednesday, September 16, 2020.

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That brief shall bear a light red cover. Court-appointed *amicus curiae* shall file a brief, limited to 13,000 words, by Friday, October 16, 2020. That brief shall bear a dark green cover. Mnuchin et al shall file a consolidated reply and response brief, limited to 13,000 words, by Friday, October 23, 2020. Collins et al. shall file a consolidated reply and response brief to brief for Court-appointed *amicus curiae*, limited to 6,000 words, by Monday, November 23, 2020. That brief shall bear a tan cover.

Brief for any *amicus curiae* in support of Collins et al. or in support of neither set of parties, shall be filed by Wednesday, September 23, 2020. Those briefs shall bear a light green cover. Brief for any *amicus curiae* in support of Mnuchin et al. or in support of Court-appointed *amicus curiae*, shall be filed by Friday, October 30, 2020. Those briefs shall bear a dark green cover.

AUGUST 24, 2020

Miscellaneous Orders

No. 19–840. CALIFORNIA ET AL. *v.* TEXAS ET AL.; and

No. 19–1019. TEXAS ET AL. *v.* CALIFORNIA ET AL. C. A. 5th Cir. [Certiorari granted, 589 U. S. 1251.] Motions of the Solicitor General for divided argument and of the U. S. House of Representatives for enlargement of time for oral argument and for divided argument granted, and the time is allotted as follows: 30 minutes for California et al., 10 minutes for U. S. House of Representatives, 20 minutes for the Solicitor General, and 20 minutes for Texas et al. Motion of Ohio et al. for leave to participate in oral argument as *amici curiae*, for enlargement of time for oral argument, and for divided argument denied.

No. 19–930. CIC SERVICES, LLC *v.* INTERNAL REVENUE SERVICE ET AL. C. A. 6th Cir. [Certiorari granted, 590 U. S. 929.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–5165. YANEY *v.* SUPERIOR COURT OF CALIFORNIA, SAN BERNARDINO COUNTY. Sup. Ct. Cal. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 907] denied.

No. 19–7935. BALL *v.* CITY OF MARION, ILLINOIS. Sup. Ct. Ill. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U. S. 940] denied.

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No. 19–8133. *MARTINEZ v. UNITED STATES*. C. A. 6th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [590 U. S. 921] denied.

Rehearing Denied

- No. 19–1224. *MANNING v. KIM*, 591 U. S. 1003;
No. 19–1229. *MULCAHY v. ASPEN SKIING Co.*, 591 U. S. 1003;
No. 19–1297. *COLLINS ET AL. v. D. R. HORTON-TEXAS, LTD.*, 590 U. S. 993;
No. 19–5989. *VICTOR v. LOUISIANA*, 590 U. S. 920;
No. 19–6701. *LABAT v. VANNOY, WARDEN*, 590 U. S. 945;
No. 19–6957. *METAYER v. FLORIDA*, 589 U. S. 1216;
No. 19–7043. *TOTH v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.*, 590 U. S. 971;
No. 19–7709. *TOTH v. ANTONACCI ET AL.*, 590 U. S. 924;
No. 19–7712. *JARAMILLO v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 590 U. S. 909;
No. 19–7840. *JONES v. ERRINGTON*, 590 U. S. 925;
No. 19–7841. *IN RE JOHNSON*, 590 U. S. 928;
No. 19–7877. *ROGERS v. GASTELO, WARDEN*, 590 U. S. 932;
No. 19–7921. *SCOTT v. SUPERIOR COURT OF CALIFORNIA, MONTEREY COUNTY*, 590 U. S. 946;
No. 19–8021. *JACKSON v. UTAH ET AL.*, 590 U. S. 949;
No. 19–8037. *RUTTKAMP v. BANK OF NEW YORK MELLON, FKA BANK OF NEW YORK*, 591 U. S. 1005;
No. 19–8086. *JACKSON v. TAYLOR, INTERIM COMMISSIONER, MISSISSIPPI DEPARTMENT OF CORRECTIONS*, 590 U. S. 962;
No. 19–8174. *MATA v. MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION*, 590 U. S. 981;
No. 19–8236. *BROOKS v. FOSTER*, 590 U. S. 994;
No. 19–8272. *TATE v. FORD, WARDEN*, 591 U. S. 1005;
No. 19–8288. *TRUONG ET AL. v. BARNARD ET AL.*, 591 U. S. 1005;
No. 19–8299. *PATTIOAY v. HAWAII*, 591 U. S. 1005;
No. 19–8312. *CANDELARIA v. UNITED STATES*, 590 U. S. 952;
No. 19–8356. *LOGAN ET AL. v. LOGAN*, 591 U. S. 1019;
No. 19–8366. *CABEZAS v. UNITED STATES*, 590 U. S. 973;
No. 19–8369. *HOSKINS v. GE AVIATION*, 591 U. S. 1007;
No. 19–8469. *VIENGXAY CHANTHARATH v. UNITED STATES*, 590 U. S. 983;

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No. 19–8485. *BELL v. UNITED STATES*, 590 U.S. 996;
No. 19–8520. *MOHN v. PROGRESSIVE INSURANCE*, 591 U.S.
1021; and
No. 19–8603. *WHITE v. INTERNAL REVENUE SERVICE*, 591
U.S. 1022. Petitions for rehearing denied.

No. 19–7915. *DEATLEY v. WILLIAMS, EXECUTIVE DIRECTOR,
COLORADO DEPARTMENT OF CORRECTIONS, ET AL.*, 590 U.S.
955. Petition for rehearing denied. JUSTICE GORSUCH took no
part in the consideration or decision of this petition.

AUGUST 25, 2020

Miscellaneous Order

No. 20A32. *MITCHELL v. UNITED STATES*. Application for
stay of execution of sentence of death, presented to JUSTICE
KAGAN, and by her referred to the Court, denied.

Statement of JUSTICE SOTOMAYOR respecting the denial of the
application for stay.

The Federal Death Penalty Act of 1994 (FDPA) requires that
the Federal Government implement death sentences “in the man-
ner prescribed by the law of the State in which the sentence is
imposed.” 18 U.S.C. §3596(a). Considerable uncertainty exists
about the scope of this provision. In the most detailed analysis
provided by a lower court to date, three judges offered three
different views on how to define the “manner” of implementing a
death sentence and where to locate the relevant “law of the
State.” See *In re Federal Bureau of Prisons’ Execution Proto-
col Cases*, 955 F.3d 106, 108 (CA9 2020) (*per curiam*) (“Each
member of the panel takes a different view of what the FDPA
requires”). Thus far, this Court has declined to provide definitive
guidance on these important questions. See *Barr v. Roane*, 589
U.S. 1097 (2019) (application for stay or vacatur denied); *Bour-
geois v. Barr*, 591 U.S. 1022 (2020) (cert. denied).

Because these questions are not adequately presented for our
review in the pending case, I agree with this Court’s decision to
deny a stay. Here, the Ninth Circuit did not need to resolve the
key issue on which the D.C. Circuit panel split because it assumed
an answer favorable to Mitchell and still denied relief. See
United States v. Mitchell, 971 F.3d 993, 996–999 (CA9 2020) (*per
curiam*). This case, therefore, does not turn on the question